

|                                                                                |  |                   |                     |                                            |      |                                            |       |
|--------------------------------------------------------------------------------|--|-------------------|---------------------|--------------------------------------------|------|--------------------------------------------|-------|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                      |  |                   | 1. CONTRACT ID CODE |                                            | PAGE | OF                                         | PAGES |
| 2. AMENDMENT/MODIFICATION NUMBER                                               |  | 3. EFFECTIVE DATE |                     | 4. REQUISITION/PURCHASE REQUISITION NUMBER |      | 5. PROJECT NUMBER (If applicable)          |       |
| 6. ISSUED BY                                                                   |  | CODE              |                     | 7. ADMINISTERED BY (If other than Item 6)  |      | CODE                                       |       |
| 8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code) |  |                   |                     | (X)                                        |      | 9A. AMENDMENT OF SOLICITATION NUMBER       |       |
|                                                                                |  |                   |                     | <input type="checkbox"/>                   |      | 9B. DATED (SEE ITEM 11)                    |       |
|                                                                                |  |                   |                     | <input type="checkbox"/>                   |      | 10A. MODIFICATION OF CONTRACT/ORDER NUMBER |       |
|                                                                                |  |                   |                     | <input type="checkbox"/>                   |      | 10B. DATED (SEE ITEM 13)                   |       |
| CODE                                                                           |  | FACILITY CODE     |                     |                                            |      |                                            |       |

### 11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

### 12. ACCOUNTING AND APPROPRIATION DATA (If required)

### 13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

|                          |                                                                                                                                                                                                                       |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE                | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.                                                                   |
| <input type="checkbox"/> |                                                                                                                                                                                                                       |
| <input type="checkbox"/> | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| <input type="checkbox"/> | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:                                                                                                                                              |
| <input type="checkbox"/> | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☐ is not ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.

### 14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                               |  |                                                            |  |
|-----------------------------------------------|--|------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print) |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) |  |
| 15B. CONTRACTOR/OFFEROR                       |  | 16B. UNITED STATES OF AMERICA                              |  |
| 15C. DATE SIGNED                              |  | 16C. DATE SIGNED                                           |  |
| (Signature of person authorized to sign)      |  | (Signature of Contracting Officer)                         |  |

Previous edition unusable

## SECTION SF 30 BLOCK 14 CONTINUATION PAGE

### SUMMARY OF CHANGES

**Block 14 (Description of Amendment/Modification):** The purpose of this Amendment is to:

1. Revise bid schedule: change CLIN 0002 to Basic Work 1 - Dredging and Placement of Dredged Material to -17.5 feet MLLW with no overdepth. Add CLIN 0003 for Basic Work 2 - Dredging and Placement of Dredged Material to -15 feet MLLW + 2 foot allowable overdepth.
2. Revise specification Section 01 11 00 and Section 35 20 23
3. Revise and reissue Sheets GI-101 and C-101
4. Add the NYSDEC Water Quality Certificate (WQC) and the final sampling and testing data for Hague Basin.
5. Answer bidder inquiries. Responses to bidder inquiries are provided "for informational purposes only" and do not revise solicitation, plans and specifications.

NOTE: Offerors must acknowledge receipt of this amendment by date specified in the bid (or as amended) by one of the following methods: In space provided on the SF 1442, by separate letter, or by signing block 15 below. FAILURE TO ACKNOWLEDGE AMENDMENT BY DATE SPECIFIED MY RESULT IN REJECTION OF YOUR BID IN ACCORDANCE WITH THE LATE BID, LATE MODIFICATION OF BID, OR LATE WITHDRAWAL OF BID (FAR 14.304).

### Section 00 01 15 - List of Drawing Sheets

The attachments table has changed from:

No prior attachments

To:

| Identifier | Document Name                | Document Description | Reference Identifier | Date        | Line Item | Page Numbers | Document Type | Provided Under Separate Cover |
|------------|------------------------------|----------------------|----------------------|-------------|-----------|--------------|---------------|-------------------------------|
| 0001       | 03 - USMMA26 Plans 27MAR2026 | Drawings             |                      | 30 Mar 2026 |           |              | Attachment    | No                            |

The following contract documents were added:

03 - USMMA26 Plans 27MAR2026

**Section 00 10 00 - Solicitation, Contract Line Item Number (CLIN) Schedule****The following CLIN(s) / SLIN(s) / ELIN(s) were added:**

| Item                           | Supplies / Services                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Quantity | Unit | Unit Price | Amount |
|--------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| Option<br>Line<br>Item<br>0008 | <p>Option 4 - Compress<br/>Schedule<br/>Dredging and Placement.<br/>Adjustment<br/>of the period of performance<br/>and<br/>required contract completion<br/>date<br/>from July 1, 2026 to June 19,<br/>2026.</p> <p>This line item shall reflect all<br/>increases or decreases to all<br/>line<br/>items of work (Basic work in<br/>CLIN<br/>Items 0001 thru 0004 and<br/>including<br/>the exercising of options<br/>CLIN<br/>0005, CLIN 0006 and CLIN<br/>0007).</p> <p>This option may be<br/>exercised within<br/>5 days from NTP.</p> <p>Pricing Arrangement: Firm<br/>Fixed Price</p> | 1        | Job  |            |        |

**The following CLIN(s) / SLIN(s) / ELIN(s) were modified:**

0002

| INFORMATION | FROM                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | TO                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | AMOUNT +/- |
|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| Description | Basic Work 1 - Dredging and Placement of Dredged Material Dredging (to -15 feet MLLW + 2 foot allowable overdepth) and Placement. Removal of material (11,360 CY) lying above the plane of 15 feet below mean lower low water (MLLW), plus 2 foot allowable overdepth from Hague Basin, U.S. Merchant Marine Academy, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s) as shown on the contract drawings. These are estimated quantities. | Basic Work 1 - Dredging and Placement of Dredged Material Dredging (to -17.5 feet MLLW) and Placement. Removal of all material (6,100 CY) lying above the plane of 17.5 feet below mean lower low water (MLLW) from Hague Basin, U.S. Merchant Marine Academy, as shown on contract drawing sheet C-101, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s). All material above the plane of 17.5 feet below MLLW must be removed and no material below the plane of 17.5 feet below MLLW shall be removed. These are estimated quantities. |            |
| Quantity    | 11,360                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 6,100                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | -5,260     |

0003

| INFORMATION | FROM                                                             | TO                                                                                                                                                                                                                                               | AMOUNT +/- |
|-------------|------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| Description | Black Box Monitoring Unit<br>See specifications section 35 20 29 | Basic Work 2 - Dredging and Placement of Dredged Material Dredging (to -15 feet MLLW + 2 foot allowable overdepth) and Placement. Removal of material (5,300 CY) lying above the plane of 15 feet below mean lower low water (MLLW), plus 2 foot |            |

|                 |     |                                                                                                                                                                                                                                                                               |        |
|-----------------|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|
|                 |     | allowable overdepth from Hague Basin, U.S. Merchant Marine Academy as shown on contract drawing sheet C-101, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s). These are estimated quantities. |        |
| Quantity        | 1   | 5,300                                                                                                                                                                                                                                                                         | +5,299 |
| Unit of Measure | Job | Cubic Yard                                                                                                                                                                                                                                                                    |        |

0004

| INFORMATION | FROM                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | TO                                                                | AMOUNT +/- |
|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------|------------|
| Description | Option Work 1 - Dredging and Placement of Dredged Material Dredging (to -12 feet MLLW + 2 foot allowable overdepth) and Placement. Removal of material (18,090 CY) lying above the plane of 12 feet below mean lower low water (MLLW), plus 2 foot allowable overdepth from Hague Basin, U.S. Merchant Marine Academy, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s) as shown on the contract drawings. These are estimated quantities. This option may be exercised within five (5) | Black Box Monitoring Unit.<br>See specifications section 35 20 29 |            |

|                  |                                                                                   |     |         |
|------------------|-----------------------------------------------------------------------------------|-----|---------|
|                  | calendar days of receipt by the Contractor of the Notice to Proceed (Basic Work). |     |         |
| Quantity         | 18,090                                                                            | 1   | -18,089 |
| Unit of Measure  | Cubic Yard                                                                        | Job |         |
| Cost Constraints | Estimated                                                                         |     |         |
| Option           | Yes                                                                               | No  |         |

## Option Line Item 0005

| INFORMATION | FROM                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | TO                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | AMOUNT +/- |
|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| Description | Option Work 2 - Dredging and Placement of Dredged Material Dredging (to -12 feet MLLW + 2 foot allowable overdepth) and Placement. Removal of material (22,685 CY) lying above the plane of 12 feet below mean lower low water (MLLW), plus 2 foot allowable overdepth from Hague Basin, U.S. Merchant Marine Academy, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s) as shown on the contract drawings. These are estimated quantities. This option may be exercised within 5 days from NTP. | Option Work 1 - Dredging and Placement of Dredged Material Dredging (to -12 feet MLLW + 2 foot allowable overdepth) and Placement. Removal of material (18,090 CY) lying above the plane of 12 feet below mean lower low water (MLLW), plus 2 foot allowable overdepth from Hague Basin, U.S. Merchant Marine Academy, as shown on contract drawing sheet C-101, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s). These are estimated quantities. This option may be exercised within 5 days from NTP. |            |
| Quantity    | 22,685                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 18,090                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | -4,595     |

## Option Line Item 0006

| INFORMATION | FROM | TO | AMOUNT |
|-------------|------|----|--------|
|-------------|------|----|--------|

| ON              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | +/-     |
|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|
| Description     | Option 3 - Compress Schedule Dredging and Placement. Adjustment of the period of performance and required contract completion date to July 1, 2026. This line item shall reflect all increases or decreases to all line items of work This line item shall reflect all increases or decreases to all line items of work (Basic work in CLIN Items 0001 thru 0003 and including the exercising of options CLIN 0004 and CLIN 0005). This option may be exercised within 5 days from NTP. | Option Work 2 - Dredging and Placement of Dredged Material Dredging (to -12 feet MLLW + 2 foot allowable overdepth) and Placement. Removal of material (22,685 CY) lying above the plane of 12 feet below mean lower low water (MLLW), plus 2 foot allowable overdepth from Hague Basin, U.S. Merchant Marine Academy, as shown on contract drawing sheet C-101, with placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s). These are estimated quantities. This option may be exercised within 5 days from NTP. |         |
| Quantity        | 1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 22,685                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | +22,684 |
| Unit of Measure | Job                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Cubic Yard                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |         |

Option Line Item 0007

| INFORMATION | FROM                                                                                                                                                                                                                                                                                                                                      | TO                                                                                                                                                                                                                                                                                                                               |
|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Description | Option 4 - Compress Schedule Dredging and Placement. Adjustment of the period of performance and required contract completion date from July 1, 2026 to June 19, 2026. This line item shall reflect all increases or decreases to all line items of work (Basic work in CLIN Items 0001 thru 0003 and including the exercising of options | Option 3 - Compress Schedule Dredging and Placement. Adjustment of the period of performance and required contract completion date to July 1, 2026. This line item shall reflect all increases or decreases to all line items of work (Basic work in CLIN Items 0001 thru 0004 and including the exercising of options CLIN 0005 |

|  |                                                                                |                                                                      |
|--|--------------------------------------------------------------------------------|----------------------------------------------------------------------|
|  | CLIN 0004 and CLIN 0005). This option may be exercised within 5 days from NTP. | and CLIN 0006). This option may be exercised within 5 days from NTP. |
|--|--------------------------------------------------------------------------------|----------------------------------------------------------------------|

## Section 00 20 00 - Instructions for Procurements

**Miscellaneous text in this section has been modified to:**

TOTAL BASE BID (CLINs 0001 THRU 0004)      \$ \_\_\_\_\_

TOTAL OPTION BID (CLINs 0005 THRU 0008) \$ \_\_\_\_\_

TOTAL BID (CLINs 0001 THRU 0008)                      \$ \_\_\_\_\_

### **NOTES TO BIDDERS:**

NOTE 1: Bidders must bid on all items. Failure to bid on all work will be cause for rejection of the bid as nonresponsive.

NOTE 2: Award of contract will be based on the responsible and responsive bidder with the lowest total price for the total of the CLINs 0001 through 0008.

NOTE 3: The unit prices for CLINs 0002, 0003, 0005, and 0006 represent the cost per cubic yard for the removal of the estimated quantities of dredged material (all material except ledge rock lying above the planes of -15 feet and -12 feet mean lower low water (MLLW) respectively, plus 2 foot allowable overdepth and the plane of -17.5 feet MLLW), in the Basic Work (Dredging Areas of CLIN 0002 and 0003) and Option Work (Dredging Area of CLINs 0005 and 0006) contract areas of Hague Basin. The dredged material from CLINs 0002, 0003, 0005, and 0006 must subsequently be transported, processed, and placed at a contractor furnished, state permitted, Government approved upland placement site(s).



NOTE 4: All bidders are hereby advised that the execution of the Options is subject to the availability of funds.

NOTE 5: Exercise of Options are at the discretion of the Government and may be exercised within five (5) calendar days of receipt by the Contractor of the Notice to Proceed (Basic Work) for Options 1 and/or 2 and exercised at contract award for Options 3 and 4. If Options 1 and/or 2 are exercised, their performance periods will be consecutive to that of the Basic Work. If Option 3, or Options 3 and 4 are exercised, please see Notes 12 thru 15.

NOTE 6: All bidders are hereby advised that the estimated dredge quantities for placement in the price schedule are estimated and based on the survey data collected on 14-17 September 2025. USACE Before Dredge (BD) survey will be performed prior to Notice to Proceed (NTP).

NOTE 7: The Government may reject a bid as non-responsive if the prices bid are materially unbalanced between line items and if there is a reasonable doubt that the bid will result in the lowest overall cost to the Government even though it may be the low bid.

NOTE 8: Bidders are reminded that they must bid on the issued plans and specifications as amended. Any deviations, conditions or attachments made by the bidder himself may render the proposal non-responsive and may be cause for its rejection.

NOTE 9: The apparent low bidder shall submit the documents specified in Section 01 30 00, Administrative Requirements, paragraph 1.4, Contractor-Identified Offloading, Processing and Disposal Site Compliance. If the apparent low bidder does not submit the required information within 20 calendar days from the date the apparent low bidder is notified of being the low bidder, the bidder may be considered non-responsive and his bid will no longer be considered. Information provided by the apparent low bidder regarding the 20-day submittal will be the final version. If the apparent low bidder requests to make changes to the 20-day submittal, they can only be made with approval from the Government.

NOTE 10: It is the contractor's responsibility to comply with all conditions and requirements of the Contractor furnished placement site(s).

NOTE 11: The Contractor shall be required to (i) commence work under this contract within five (5) calendar days

after the date the Contractor receives the Notice to Proceed, (ii) prosecute the work diligently, and (iii) complete

the entire work (Basic and Options 1 and 2) ready for use, not later than 30 calendar days after the date the Contractor receives the Notice to Proceed. Should any option(s) be exercised, all work is still required to be completed by the required completion date as included in the exercised option. The time stated for completion shall include final cleanup of the premises. (FAR 52.236-12)

NOTE 12: The Contractor shall meet a production rate to complete all work based upon the adjusted required completion date set forth in Option 3 and Option 4, subject to availability of

funding. If Option 3 is exercised, the required contract completion date will be July 1, 2026. If both Options 3 and 4 are exercised, the required contract completion date will be June 19, 2026. Option 4 cannot be exercised without the exercise of Option 3.

NOTE 13: Option 3 represents the difference in net price (positive or negative) for CLINs 0001 thru 0006, between completing the contract within 30 calendar days of NTP issuance, and the adjusted required completion date of July 1, 2026. For example, if completing the contract for CLINs 0001 thru 0006 by July 1, 2026 is a lower cost than completing the contract within 30 calendar days of NTP issuance, then the firm fixed price for Option 3 would be negative to reflect the reduced cost. If completing the contract for CLINs 0001 thru 0006 by July 1, 2026 is a higher cost than completing the contract within 30 calendar days of NTP issuance, then the firm fixed price for Option 3 would be positive to reflect the increased cost.

NOTE 14: Option 4 represents the difference in net price (positive or negative) for CLINs 0001 thru 0006, between completing the contract by the required completion date of July 1, 2026 in Option 3 and completing the contract by the required completion date of June 19, 2026 in Option 4. For example, if completing the contract for CLINs 0001 thru 0006 by June 19, 2026 is a lower cost than completing the contract by July 1, 2026, then the firm fixed price for Option 4 would be negative to reflect the reduced cost. If completing the contract for CLINs 0001 thru 0006 by June 19, 2026 is a higher cost than completing the contract by July 1, 2026, then the firm fixed price for Option 4 would be positive to reflect the increased cost.

NOTE 15: If Option 3, or Options 3 and 4 are exercised, FAR 52.211-18 Variation in Estimated Quantity clause would not be authorized nor will there be any increases or decreases in quantities.

## **Section 00 21 13 - Instructions to Bidders**

**Miscellaneous text in this section has been modified to:**

### **SUBMISSION INSTRUCTIONS**

Contractors are required to deliver bids to 26 Federal Plaza, Room 16-300. The designated recipient of bids is Mohenda Surage, Telephone number (917) 790-8088. Bids are due no later than 13 April 2026 at 2:00 P.M. Bid opening will happen on 13 April 2026 at 2:00 P.M EST.

NOTE: If dropping bids off in person, please advise via email to [mohenda.r.surage@usace.army.mil](mailto:mohenda.r.surage@usace.army.mil) and [nicholas.p.emanuel@usace.army.mil](mailto:nicholas.p.emanuel@usace.army.mil).

The Government will not be responsible for submissions delivered to any location or to anyone other than those designated to receive proposals. Offerors are responsible for ensuring that Bids are submitted so as to reach the designated recipient and designated location. Offerors are responsible for allowing sufficient time for the bids to be received in accordance with the instructions provided. Contractors will be allowed to physically be in the conference room during the bid opening however,

Bidders are encouraged to call into the following teleconference line:

Call number

US Toll Free +1-844-800-2712 US Toll Free +1-669-234-1177

Access code: 199 476 8533

Bidders must keep their phones on mute as to not disrupt the reader. Please limit the amount of company employees calling into the line so that the line does not disconnect. The abstract of bids will be posted to the Sam.gov website.

### **ADDITIONAL INSTRUCTIONS**

Potential Bidders are reminded that only the minimum documents are required for bid submission:

1. Signed 1442.
2. Acknowledged amendments.
3. Filled out bid schedule and totals.
4. Bid Guarantee.
5. Bidders must check off box (d) in 52.204-8 Annual Representations and Certifications for being on SAM.gov.

### **Bid Inquiry Instructions**

Submission of inquiries will open on the first day of the solicitation being posted. Any questions relating to this solicitation shall be submitted via email to the Contract Specialist and Contracting Officer. **These are the only individuals to whom questions should be addressed. The cutoff**

**date for inquiries to be considered for response is at 11:59AM EDT seven (7) calendar days prior to the solicitation closing date.** No other means of communication (fax, telephone, etc.) will be accepted. The Government reserves the right to decline addressing questions received after that date. If an Offeror believes that the requirement in this solicitation contains an error, omission, or are otherwise unsound; immediately notify the Contract Specialist in writing with supporting rationale. Oral exchanges with the Government prior to award of the contract will not be binding. The Government reserves the right to award this contract based on the initial bid/proposal, as received, without discussions. Any information concerning this solicitation will be furnished as an amendment to the solicitation if the information is necessary to the submittal of offers, which will be posted to the SAM.gov website.

### **CPARS**

The Federal Acquisition Regulation (FAR) requires that Past Performance Information (PPI) be collected on DoD contracts. The Contractor Performance Assessment Reporting System (CPARS) is a web-enabled application that supports the completion, distribution, and retrieval of all contract performance evaluations. Contractor Representatives are responsible for reviewing and commenting on evaluations submitted on the Contractor Performance Assessment Reporting System (CPARS) website at

<https://www.cpars.gov/>.

### **BOND INSTRUCTIONS TO BIDDERS**

#### **NOTICE REGARDING BID BONDS, PERFORMANCE BONDS, AND PAYMENT BONDS**

The Standard Forms (SF24, SF25, and SF25A) for these bonds have been revised and can be found using the search at [https://www.gsa.gov/reference](https://www.gsa.gov/reference/forms#) /forms#. When including your bid/offer, contractors/sureties shall use the revised versions. No other version will be valid and thus may render your bid/offer non-compliant.

### **E-VERIFY**

The Contractor must pre-screen Candidates using the E-verify Program (<http://www.uscis.gov/everify>) website to meet the established employment eligibility requirements. The Vendor must ensure that the Candidate has two valid forms of Government issued identification prior to enrollment to ensure the correct information is entered into the E-verify system. An initial list of verified/eligible candidates must be provided to the COR no later than 3 business days after the initial contract award."

\*When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, with the designated Government representative. This Form will be provided to the Contracting Officer and shall become part of the official contract files.

## **Section 00 72 00 - General Conditions**

**Miscellaneous text in this section has been added to:**

### **AT/OPSEC**

1. General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

3. Physical security and access control requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance

requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-III") and Terrorist Screening Database (commonly referred to as "TSDB"). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

## Section 00 73 00 - Supplementary Conditions

**The inspection and acceptance locations for the following CLIN(s) / SLIN(s) / ELIN(s) were added:**

Option Line Item 0008

Inspection and Acceptance Location - DoDAAC: W912DS

| INFORMATION         | VALUE                                                                                                                               |
|---------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| Action              | Both                                                                                                                                |
| Location            | Destination                                                                                                                         |
| Acceptance Location | W912DS<br>W2SD ENDIST NEW YORK<br>KO CONTRACTING DIVISION, 26 FEDERAL PLAZA ROOM 16 300<br>NEW YORK, NY 10278-0004<br>UNITED STATES |
| Instructions        | Please see Specifications.                                                                                                          |
| POC Name            | Jun Yan                                                                                                                             |
| POC Email           | Jun.Yan@usace.army.mil                                                                                                              |
| POC Telephone       | 917-790-8437                                                                                                                        |

**The delivery information for the following CLIN(s) / SLIN(s) / ELIN(s) were added:**

Option Line Item 0008

| INFORMATION           | VALUE                      |
|-----------------------|----------------------------|
| Period of Performance | 15 Apr 2026 to 15 May 2026 |

Place of Performance - DoDAAC: 963387

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| INFORMATION   | VALUE                                                                                                                                                  |
|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| Address       | Place of Performance<br>963387<br>USACE NEW YORK DIST<br>NEW YORK DISTRICT OPS DIV, 26 FEDERAL PLAZA 16TH FLOOR<br>NEW YORK, NY 10278<br>UNITED STATES |
| POC Name      | Yan Yun                                                                                                                                                |
| POC Email     | Jun.Yan@usace.army.mil                                                                                                                                 |
| POC Telephone | 917-790-8437                                                                                                                                           |
| Delivery      |                                                                                                                                                        |

## Section 01 00 00 - General Requirements

**Miscellaneous text in this section has been modified to:**

### **Amendment 0001**

TO BIDDERS:

The following changes shall be made to this solicitation.

DRAWINGS:

1. The following DRAWINGS have been REVISED and REISSUED:

- Sheet GI-101: The project legend has been changed to add "BASIC WORK 2" and "SLOPE OF BASIC WORK 2".
- Sheet C-101: "BASIC WORK 1" area has been split into two (2) areas "BASIC WORK 1" and "BASIC WORK 2".
- Sheet C-101: The side slope for "BASIC WORK 1" has been modified to reflect the new depth of -17.5 feet MLLW. The "SLOPE OF BASIC WORK 1" is 1V:4H.
- Sheet C-101: The project legend has been changed to add "BASIC WORK 2" and "SLOPE OF BASIC WORK 2".
- Please refer to "03 - USMMA26 Plans 27MAR2026".

2. The following DRAWINGS have been REVISED but NOT REISSUED:

None

3. The following DRAWINGS have been ADDED:

None

4. The following DRAWINGS have been DELETED:

None

#### SPECIFICATIONS:

1. The following SPECIFICATIONS have been REVISED and REISSUED:

None

2. The following SPECIFICATIONS have been REVISED but NOT REISSUED:

- Section 01 11 00 Page 1 Paragraph 1.2 b.: "Should Option 1 and/or Option 2 be exercised, an additional one (1) calendar day for each 2,500 cubic yards to be removed under the option(s) will be allowed."

- Section 01 11 00 Page 1 Paragraph 1.2 c.: "Should Option 3 or Options 3 and 4 be exercised, the contractor shall meet a production rate to complete the work based upon the required completion date set forth in the Option."

- Section 01 11 00 Page 2 Paragraph 1.3.1: "The maintenance for this project consists of dredging a total of approximately 52,175 CY of material based on the plans and specifications survey performed in September 2025."

- Section 01 11 00 Page 2 Paragraph 1.3.1 Table: "BASIC WORK 1 - Dredging Area: (-17.5' MLLW + 0' OD)". Quantity (CY): 6,100

- Section 01 11 00 Page 2 Paragraph 1.3.1 Table: "BASIC WORK 2 - Dredging Area: (-15' MLLW + 2' OD)". Quantity (CY): 5,300

- Section 01 11 00 Page 2 Paragraph 1.3.1: "CLIN 0002 (BASIC WORK 1- Dredging Area - requires dredging to the plane of -17.5 feet Mean Lower Low Water (MLLW) plus 0 feet allowable overdepth). NOTE: All material above the plane of 17.5 feet below MLLW must be removed and no material below the plane of 17.5 feet below MLLW shall be removed."

- Section 01 11 00 Page 2 Paragraph 1.3.1: "CLIN 0003 (BASIC WORK 2- Dredging Area- requires dredging to the plane of -15 feet MLLW plus 2 feet allowable overdepth)."



- Section 01 11 00 Page 2 Paragraph 1.3.1: "CLIN 0005 (OPTION 1 - Dredging Area - requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth)."
- Section 01 11 00 Page 2 Paragraph 1.3.1: "CLIN 0006 (OPTION 1 - Dredging Area - requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth)."
- Section 01 11 00 Page 2 Paragraph 1.3.1: "Based on the plans and specifications survey performed in September 2025, the maximum quantity available to be dredged is 52,175 CY from the contract areas in the Hague Basin, U.S. Merchant Marine Academy."
- Section 35 20 23 Page 5 Paragraph 3.2.7.2: "To cover unavoidable inaccuracies of dredging processes, material actually removed to a depth of [CLIN-BASED ALLOWABLE OVERDEPTHS AS STATED IN BID SCHEDULE] below the minimum required depth specified and within the dredging limits will be measured and paid for at full contract price."
- Section 35 20 23 Page 5 Paragraph 3.2.7.3: "A [CLIN-BASED ALLOWABLE OVERDEPTH AS STATED IN BID SCHEDULE] allowance will be made for dredging beyond the indicated or specified side slopes, except as provided herein."
- Section 35 20 23 Page 6 Paragraph 3.2.9 a. (1): "BASIC WORK 1 Dredging Area: requires dredging to the plane of -17.5 feet Mean Lower Low Water (MLLW) plus 0 feet allowable overdepth."
- Section 35 20 23 Page 6 Paragraph 3.2.9 a. (2): "BASIC WORK 2 Dredging Area: requires dredging to the plane of -15 feet MLLW plus 2 feet allowable overdepth."
- Section 35 20 23 Page 6 Paragraph 3.2.9 a. (3): "OPTION 1 Dredging Area: requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth."
- Section 35 20 23 Page 6 Paragraph 3.2.9 a. (4): "OPTION 2 Dredging Area: requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth."

3. The following SPECIFICATIONS have been ADDED:

None

4. The following SPECIFICATIONS have been DELETED:

None

BID SCHEDULE:

2. The following BID SCHEDULE have been REVISED and REISSUED:

- CLIN 0002: Basic Work 1 - Dredging and Placement of Dredged Material to -17.5 feet MLLW with no overdepth. All material above the plane of 17.5 feet below MLLW must be removed and no material below the plane of 17.5 feet below MLLW shall be removed.

- CLIN 0004: Black Box Monitoring Unit

- CLIN 0005: Option Work 1 - Dredging and Placement of Dredged Material to -12 feet MLLW + 2 foot allowable overdepth.

- CLIN 0006: Option Work 2 - Dredging and Placement of Dredged Material to -12 feet MLLW + 2 foot allowable overdepth.

- CLIN 0007: Option 3 - Compress Schedule Dredging and Placement. This option may be exercised within 5 days from NTP.

- CLIN 0008: Option 4 - Compress Schedule Dredging and Placement. This option may be exercised within 5 days from NTP.

- NOTE 5: Exercise of Options are at the discretion of the Government and may be exercised within five (5) calendar days of receipt by the Contractor of the Notice to Proceed (Basic Work) for Options 1 and/or 2 and exercised at contract award for Options 3 and 4.

2. The following BID SCHEDULE have been REVISED but NOT REISSUED:

None

3. The following BID SCHEDULE have been ADDED:

- CLIN 0003: Basic Work 2 - Dredging and Placement of Dredged Material to -15 feet MLLW + 2 foot allowable overdepth.

4. The following BID SCHEDULE have been DELETED:

None

ATTACHMENTS:

1. The following ATTACHMENTS have been REVISED and REISSUED:

- Please refer to "03 - USMMA26 Plans 27MAR2026".

- Please refer to "02 - Bid Schedule USMMA26 26MAR2026".

2. The following ATTACHMENTS have been REVISED but NOT REISSUED:

- Please refer to attachments "SPECS\_CHG-01 11 00\_USMMA26" and "SPECS\_CHG-35 20 23\_USMMA26".

3. The following ATTACHMENTS have been ADDED:

- NYSDEC Water Quality Certificate (WQC) titled "Hague Basin Permit".
- Attachments for the Sampling and Testing data are titled "USMMA (45-170) Final Report Rev-1" and "USMMA\_Battelle Final Data Tables".
- Dock map attachment for question 1 titled "USMMA25\_docks".

4. The following ATTACHMENTS have been DELETED:

None

#### BIDDERS'S QUESTIONS AND GOVERNMENT REPLY

(Questions that may be of general interest to all offerors and/or the Government and that are not readily answered by the proceeding changes will appear below. These questions may have been paraphrased or altered to represent several questions regarding the same subject and/or simply revised to clarify and simplify the question(s). Questions and answers are issued to the Offerors "For Information Only" and do not revise the solicitation, plans or specifications.)

1) To what extent can existing piers and/or pilings be removed prior to dredging operations commence?

Response: All floating docks can be moved with sufficient notice, except for the ones boxed in red on the attached map titled "USMMA25\_docks" as the pilings would have to be removed to maneuver those specific docks. USMMA indicated that dredging was accomplished in the past with those specific docks in place. Pilings shall not be removed or damaged during dredging operations.

2) Timeframe on Water Quality Certificate? This is necessary to confirm allowable dredging parameters and requirements.

Response: The Water Quality Certificate is added with amendment 0001.

3) Are we to assume the test results provided for the Base Work will apply to options 1 and 2, with any significant deviations being considered a differing site condition where the contractor would be entitled to equitable compensation?

Response: The sampling and testing results for all dredging areas of Hague Basin are added with amendment 0001.

4) What is the timeframe for receipt of the analytical results for options 1 and 2? We cannot proceed with the processing and disposal of these areas unless and until these results have been received, which then requires an additional 20-day approval period.

Response: The sampling and testing results for all dredging areas of Hague Basin are added with amendment 0001.